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BEFORE THE MADURAI BENCH OF MADRAS HIGH COURT

Reserved on	***28.08.2026***
Pronounced on	***16.10.2026***

CORAM:

THE HONOURABLE MR.JUSTICE RAJNISH PATHIYIL

WP(MD) Nos. 2535 OF 2017
AND
WMP(MD) NO. 2107 OF 2017

1. R. Seenivsan
2. M.R.Ganesh Babu
3. S.K. Sree Kumar
4. G.Jeyaram
5. K.S.Kubendran — Petitioner(s)

Vs

1. The Secretary,
   State Of Tamilnadu,
   Department Of School Education,
   Fort.St.George,
   Chennai-600 009.

2. The Director Of School Education,
   College Road,
   Chennai-600 006.

3. The Chief Educational Officer
   Tuticorin-628 002.

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4. The District Educational Officer,
Kovilpatti-628 501
Tuticorin District.

5. The Correspondent,
St.Joseph Higher Secondary School,
Kovilpatti-628 501,
Tuticorin District. Respondent(s)

Prayer : Writ petiiton is filed under Article 226 of the Constitution of India, to issue a Writ of Certiorarified Mandamus calling for the records relating to quash the impugned order issued by the 2nd respondent Director of School Education in O.Mu.No.94986/D2/E2/2014 dated 02.01.2015 and the consequential proceedings of the 4th respondent District Educational Officer in O.Mu.No.6326/Aa1/2016 dated 25.11.2016, quash the same, and further Direct the respondents to approve the appointment of the petitioners as Middle Grade Graduate Teachers either w.e.f. 14.06.2002 in regular scale of pay as per G.O.Ms.No.79 (Secondary Education – U1) dated 14.06.2002 with salary and all other consequential benefits.

For Petitioner(s):
Mr.K.K.Ragatheesh Kumar
M/s.Isaac Chambers

For Respondent(s):
Mr.P. Pethu Rajesh,
Additional Government Pleader for Counter for R1 to R4

No appearance – R5

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ORDER

This writ petition has been filed seeking for the issuance of a writ of certiorarified mandamus to quash the impugned order issued by the second respondent dated 02.01.2015 and the consequential proceedings dated 25.11.2016 and to direct the respondents to approve the appointment of the petitioner as middle grade graduate teachers with effect from 14.06.2002 in terms of G.O. Ms. No. 79 dated 14.06.2002.

2. The facts that have been narrated in the affidavit filed in support of the writ petition are that the petitioners are working as B.T. Assistants in the fifth respondent school at Madurai. The fifth respondent school is a minority educational institution. They were initially appointed as secondary grade teachers against sanctioned vacancies. The fifth respondent school being a minority educational institution, no prior permission of the department is required to fill up the sanctioned vacancies. The details of each of the petitioners are tabulated hereunder:

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S. No.	Name	Qualification	Post	Date of Initial Appointment	Details of Vacancy
1.	R. Seenivasan	B.Sc., B.Ed.,	BT Assistant (Maths)	04.06.1998	Due to the promotion of K. Nagasubramanian
2.	M.R. Ganesh Babu	B.Sc., B.Ed.,	BT Assistant (Maths)	04.06.1998	Due to the retirement of T.K. Kuppusamy
3.	S.K. Sree Kumar	B.Sc., B.Ed.,	BT Assistant (Maths)	25.06.1998	Due to the promotion of K.K. Jenarthanan
4.	G. Jeyaram	M.Sc., M.Ed., M.Phil	BT Assistant (Science)	01.07.1998	Due to the promotion of G.J. Raman
5.	K.S. Kubendran	B.Sc., B.Ed.,	BT Assistant (Maths)	03.06.1999	Due to the retirement of R. Amal Raj

3. It is the contention of the petitioners that the appointments were all made against the vacancies of secondary grade teachers in the middle school section with graduate qualifications, i.e., B.Ed. Thereafter, a proposal was submitted for approval of the appointments and for disbursement of grant-in-aid towards the salary. The District Educational Officer, who is the 4th respondent, had declined to approve the appointments in view of the order issued by the Government in G.O.Ms.No.559 dated 11.07.1995 precluding approval to the appointments of graduate teachers in secondary grade posts.

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4. The said G.O. Ms. No. 559 dated 11.07.1995 was put to challenge by several schools, in a batch of Writ Petition Nos. 6988 of 1998 etc., this Court, by order dated 19.05.1998, dismissed the writ petitions, against which appeals were filed in W.A.Nos. 991 to 998 of 1998. The Hon'ble Division Bench, by Order dated 29.06.2001, (*Secretary Correspondent Uswathun Hasana Oriental (Arabic) Girls Higher Secondary School v. State of Tamil Nadu*, 2002 Writ LR 173), directed the State Government to evolve a scheme and approve the Graduate Teachers appointed in Secondary Grade posts up to 19.05.1998 i.e. the date on which the learned Single Judge had passed the order.

5. Accordingly, and in compliance with the directions of the Hon’ble Division Bench, the State Government evolved a scheme and issued G.O. Ms. No. 155, School Education (D2) Department, dated 03.10.2002, directing to approve the appointments of Graduate Teachers with qualification for B.T. / Tamil Pandit in secondary grade posts up to 19.05.1998. It was further directed in the said G.O. that the Graduate teachers appointed between 11.07.1995 and 19.05.1998 should undergo a month’s training in Child Psychology, and directed the educational authorities to approve the

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appointments after completion of the said training vide G.O.Ms.No.155 dated 03.10.2002. The G.O. further directed the recovery of salaries paid to those teachers who were earlier working on the strength of the Interim Orders of the Hon'ble Court.

6. The said G.O.Ms.No.155 dated 03.10.2002 was put to challenge before this Court in a batch of writ petitions. The Hon'ble Division Bench upheld the aforesaid G.O. in a reported judgment in **State of Tamil Nadu v. Pallivasal Primary School, 2004 (2) LW 591**. The Hon'ble Division Bench, however, directed the Government not to recover the salaries already paid to them, and further directed to reckon their services rendered before completion of one-month Child Psychology for pension purposes. However, as the appointment of petitioners were after the cut-off date fixed by this Hon'ble Court, the Department had not approved the appointments against the sanctioned posts, and the school retained the said posts.

7. In the meantime, sometime in the year 2002, the State Government noted the fact that Secondary Grade teachers with Teacher Training Certificates / Diplomas in Teacher Education were not qualified

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enough to handle the advanced syllabi prescribed for the middle school sections and hence, evolved a policy of appointing Graduate Teachers in those posts. Vide G.O.Ms. No. 79 (Secondary Education – U1) dated 14.06.2002 the said prescription and orders were passed. The posts of Secondary Grade teachers were decided to be upgraded into those of Graduate Teachers in the regular scale of pay of Rs. 4500-125-7000/-.

8. In order to protect the interests of the existing Secondary Grade teachers, the posts of secondary grade teachers were to be upgraded as Graduate posts as and when those posts fell vacant, and thereafter, persons with Graduate qualifications should alone be appointed. Such upgraded posts came to be known as “Middle Grade Graduate Teachers”. In view of the said G.O., Graduate Teachers with B.A. / B.Sc., + B.Ed. qualifications came to be appointed as Middle Grade Graduate Teachers in the posts of Secondary Grade Teachers as and when they fell vacant since 01.06.2002.

9. The petitioners herein have cited G.O. Ms. No. 79 dated 14.06.2002 and claimed that they are eligible to be appointed, and that their appointments should have been approved. Hence, the fifth respondent

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submitted a proposal to the fourth respondent to approve their appointments in light of G.O. Ms. No. 79 dated 14.06.2002. However, the DEO, the fourth respondent, insisted that the fifth respondent school should issue fresh appointment orders in respect of the individuals appointed as Middle Grade Graduate teachers. And at the instance of the fourth respondent, the fifth respondent school issued fresh appointment orders on 21.10.2002 appointing them as Middle Grade Graduate teachers vide G.O.Ms.No.79 and submitted the proposal for the approval of the fourth respondent. The fourth respondent, however, did not pass any orders.

10. In the meantime, the Government issued two other G.Os, namely G.O.Ms.No.100 (School Education - Budget) dated 27.06.2003 and G.O.Ms.No.125 (School Education (X2) Dept.) dated 12.11.2003. The first G.O. i.e., G.O.Ms.No.100, pertains to the appointment of Graduate Teachers in Panchayat Union Schools, while the second G.O. pertains to private aided schools. In the said G.Os, the Government introduced a new system of payment namely, 'Consolidated Pay' for a certain period.

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11. Thereafter, the Government issued G.O.Ms.No.130, School Education Department dated 27.09.2004, ratifying the appointments of various Middle Grade Graduate Teachers appointed in the private schools in violation of G.O.Ms.No.79.

12. The claim of the official respondents is that while appointing Middle Grade Graduate teachers in the Secondary Grade vacancy vide G.O. Ms. No. 79, the schools had to take prior permission. However, the school contended that the appointments do not require prior permission and most of the appointments were made without obtaining prior permission from the concerned school authorities. However, the Government decided to approve those appointments under consolidated pay of Rs.4,000/- per month, w.e.f. 01.06.2003.

13. It is the case of the petitioners that the circumstances that were obtaining then, that is, the lack of enough graduate teachers, were the reason for introducing these G.Os and for recruiting teachers on a large scale, and also to pay them a consolidated pay.

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14. However, the conditions imposed in G.O.Ms.No.79, regarding prior permission do not apply to the petitioners, according to them, for two reasons: firstly, that the fifth respondent is a minority educational institution and there is no necessity to get prior permission; secondly, that the petitioners were appointed against sanctioned vacancies much before the issuance of G.O. Ms. No. 79, and thus would contend that prior permission is not necessary.

15. The learned Additional Government Pleader would contend that the petitioners, being degree-qualified teachers, were appointed against vacancies in the post of Secondary Grade Teacher, and that their appointments could not be approved in view of G.O.Ms. No.559 dated 11.07.1995. The validity of said G.O. was put to challenge in a batch of writ petitions and was dismissed by a learned Single Judge on 19.05.1998 and the consequent writ appeals were also dismissed by a Division Bench on 29.06.2001 ***(Secretary Correspondent Uswathun Hasana Oriental (Arabic) Girls Higher Secondary School v. State of Tamil Nadu, 2002 Writ L.R. 173),*** subject to the concession that B.Ed. qualified teachers appointed prior to 19.05.1998 would be regularized upon completion of one month's Child Psychology Training,

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pursuant to which G.O.Ms.No.155 dated 03.10.2002, was issued. Since petitioners 1 to 5 were appointed only on 04.06.1998, 04.06.1998, 25.06.1998, 01.07.1998 and 03.06.1998 respectively, i.e., after the cut-off date, their appointments could not be approved under the said G.O.

16. He would further contend that G.O.Ms.No.79 dated 14.06.2002, which provides for the appointment of B.Ed. qualified teachers in the place of Secondary Grade Teachers by classifying them as Middle Grade Graduate Teachers, was issued in respect of Government schools and is not applicable to aided schools. Hence, the said G.O. cannot be relied upon for seeking approval of the petitioners' appointments w.e.f. 14.06.2002.

17. Subsequently, the Government issued two G.O. namely, G.O.Ms.No.100 dated 27.06.2003 in respect of Government schools and G.O.Ms.No.125 dated 12.11.2003 in respect of aided schools, under which, various categories of teacher posts were converted into Junior Grade Teacher posts carrying consolidated pay. Accordingly, the appointments of the petitioners were approved w.e.f. 01.06.2003 on consolidated pay and were subsequently brought under the time scale of pay w.e.f. 01.06.2006. Hence,

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the petitioners cannot claim approval of their appointments w.e.f. 14.06.2002 under G.O.Ms.No.79, which is applicable only to Government schools.

18. It was further submitted that, the Government issued G.O.Ms.No.144 dated 04.07.2008, wherein he Chief Educational Officer is empowered to convert vacant Secondary Grade Teacher posts into subject-wise B.T. Teacher posts, having regard to the requirement of the school and the qualifications of the teachers. The said Government Order provides that B.Ed.-qualified teachers appointed to teach Classes VI to VIII in subjects such as English, Mathematics and Science shall be given preference against the respective vacancies. It is further provided that, since Classes VI to X are treated as a single unit subject-wise, vacant Secondary Grade Teacher posts may be converted into graduate teacher posts according to the requirement of the particular subject and even minority schools are required to obtain permission for such subject-wise rotation and that the said requirement does not amount to interference with the right of administration of the minority institution.

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19. It was therefore contended that as the petitioners were appointed after the cut-off date i.e., 19.05.1988, their initial appointments were irregular, and their claim can be traced only to G.O.Ms.No.125 dated 12.11.2003, under which their appointments were approved with effect from 01.06.2003. Furthermore, the petitioners cannot seek any benefit under G.O.Ms.No.79 dated 14.06.2002, as it is applicable only to Government schools and not to aided schools.

20. This Court has considered the submissions made by the learned counsel appearing for the petitioners and the learned Additional Government Pleader appearing for the respondents and perused the materials placed on record.

21. The petitioners were appointed between 04.06.1998 and 03.06.1999. It is seen from the materials placed before this Court that, as early as in the year 2002, the School had submitted a proposal to the competent authority seeking approval of the petitioners' appointments by extending the benefit of G.O.Ms.No.79. The said proposal was not accepted. Thus, the petitioners were aware, at the earliest, from the year 2002 that the

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benefit claimed by them had not been extended to their appointments. However, they did not challenge the said decision within a reasonable period.

22. Instead, after a considerable lapse of time, the petitioners submitted a representation dated 31.07.2012, seeking extension of the benefit allegedly granted to one Padma Sheela Rani, vide proceedings dated 22.11.2008, and to D.Lily, vide proceedings dated 29.10.2010. The said representation came to be rejected by the Director vide proceedings dated 02.01.2015 on the ground that the benefit extended to the said persons was pursuant to orders passed by this Court and, therefore, the same could not be claimed as a matter of parity by the petitioners. The rejection was thereafter reiterated by the District Educational Officer vide proceedings dated 25.11.2016, in response to the representation submitted by the School on 21.10.2016. Aggrieved by the aforesaid proceedings, the present writ petition has been filed.

23. Eventhough the present writ petition was instituted in the year 2017, shortly after the proceedings dated 25.11.2016, the question of delay and laches cannot be examined merely with reference to the date of the

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last rejection order. The subsequent representation and the order passed thereon cannot be treated as giving rise to a fresh cause of action. The claim of the petitioners has to be examined with reference to the original cause of action, namely, the non-approval of their appointments and the rejection of the proposal seeking such approval in the year 2002. The fact that the petitioners approached this Court soon after the rejection of their subsequent representation in 2016 would not, by itself, efface the prolonged period of inaction from 2002 onwards.

24. In this context, the principle laid down by the Hon'ble Supreme Court in ***C. Jacob v. Director of Geology and Mining*****,** reported in **(2008) 10 SCC 115,** assumes significance. The Hon'ble Supreme Court has held that representations relating to matters which have become stale or are barred by limitation can be rejected on that ground and that a representation, or an order passed upon such representation, does not furnish a fresh cause of action or revive a stale or dead claim. The fact that an authority subsequently considers and rejects a representation cannot, therefore, be construed as giving a fresh lease of life to a claim which had remained unchallenged for a considerable period. The relevant portions of the said judgment is extracted

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hereunder:

> "*7. Every representation to the government for relief, may not be replied on merits. Representations relating to matters which have become stale or barred by limitation, can be rejected on that ground alone, without examining the merits of the claim. In regard to representations unrelated to the department, the reply may be only to inform that the matter did not concern the department or to inform the appropriate department. Representations with incomplete particulars may be replied by seeking relevant particulars. The replies to such representations, cannot furnish a fresh cause of action or revive a stale or dead claim.*
>
> *8. When a direction is issued by a court/tribunal to consider or deal with the representation, usually the directee (person directed) examines the matter on merits, being under the impression that failure to do may amount to disobedience. When an order is passed considering and rejecting the claim or representation, in compliance with direction of the court or tribunal, such an order does not revive the stale claim, nor amount to some kind of `acknowledgment of a jural relationship' to give rise to a fresh cause of action.*"

25. The above principle is equally applicable to the present case. The petitioners' claim had its genesis in their appointments made between 1998 and 1999 and, admittedly, the proposal seeking approval of such

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appointments under G.O.Ms.No.79 had already been rejected in the year 2002. The petitioners did not assail the said rejection at that point of time. The subsequent representations made in 2012 and 2016, therefore, cannot have the effect of reviving the original claim or creating a fresh cause of action. The proceedings dated 02.01.2015 and 25.11.2016 were only consequential orders passed on the subsequent representations and cannot be treated as fresh orders giving rise to an independent cause of action.

26. The reliance placed upon the proceedings issued in favour of Padma Sheela Rani in the year 2008 and D.Lily in the year 2010 also does not alter the position. Those proceedings were not orders granting a general or automatic extension of the benefit under G.O.Ms.No.79 to all similarly situated persons.

27. The principle laid down by the Hon'ble Supreme Court in ***State of Uttar Pradesh v. Arvind Kumar Srivastava*, reported in (2015) 1 SCC 347,** is apposite. The Hon'ble Supreme Court has held that persons who do not challenge the alleged wrongful action in their own cases and remain silent, but subsequently approach the Court only after their counterparts

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succeed, cannot claim the benefit as a matter of right and may be treated as fence-sitters. The relevant paragraph is extracted hereunder:

> *"22.2. However, this principle is subject to well-recognised exceptions in the form of laches and delays as well as acquiescence. Those persons who did not challenge the wrongful action in their cases and acquiesced into the same and woke up after long delay only because of the reason that their counterparts who had approached the court earlier in time succeeded in their efforts, then such employees cannot claim that the benefit of the judgment rendered in the case of similarly situated persons be extended to them. They would be treated as fence-sitters and laches and delays, and/or the acquiescence, would be a valid ground to dismiss their claim."*

28. In the present case, the petitioners did not challenge the rejection of their claim in the year 2002. They remained silent for several years and sought to rely upon the subsequent proceedings issued in favour of other individuals in 2008 and 2010. Even thereafter, their representation was made only on 31.07.2012, nearly a decade after the rejection of their claim. The present proceedings of the year 2015 and 2016, and the Government Orders issued in respect of other Middle Grade Graduate Teachers, do not

https://www.mhc.tn.gov.in/judis

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give them a fresh cause of action. The petitioners, having acquiesced for such a long time, must be treated as fence-sitters and cannot be permitted to reopen the matter.

29. The delay in the present case is not a mere technical delay. The petitioners seek to enforce a right arising out of appointments made as far back as in 1998-1999, despite the rejection of the proposal seeking approval under G.O.Ms.No.79 in 2002. No satisfactory explanation has been offered for the failure to challenge the said rejection within a reasonable period. The subsequent representations do not erase the intervening period of inaction and, applying the principles laid down in ***C. Jacob*** **and** ***Arvind Kumar Srivastava (supra)***, cannot revive a stale claim.

30. Accordingly, this Court is of the view that the writ petitioners, having approached this Court after an inordinate and unexplained delay, are guilty of laches. The claim is, therefore, liable to be rejected on the ground of delay and laches alone. In view of the same, it is not necessary for this Court to examine the merits of the petitioners' claim for extension of the benefit of G.O.Ms.No.79.

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31. Accordingly, the writ petition stands dismissed. No costs. Consequently, connected miscellaneous petition is closed.

16.10.2026

NCC :yes/No
Index :yes/No
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https://www.mhc.tn.gov.in/judis

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RAJNISH PATHIYIL, J.

KSA

Order in
WP(MD) NO. 2535 of 2017

16.10.2026

https://www.mhc.tn.gov.in/judis